

SPECIAL ISSUE



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GAZETTE NOTICE No. 260

THE CONSTITUTION OF KENYA

THE COUNTY GOVERNMENTS ACT

(Cap. 265)

COUNTY ASSEMBLY OF NAROK

COUNTY ASSEMBLY OF NAROK STANDING ORDERS

SPECIAL SITTING OF THE COUNTY ASSEMBLY

PURSUANT to Standing Order No. 26 (3) of the Narok County Assembly Standing Orders, it is notified for the information of the Members of County Assembly of Narok County and the general public that a special sitting of the County Assembly shall be held in the Assembly Chambers, Narok, on Friday, 9th January, 2026, from 9.30 a.m., for purposes of tabling and committal of a petition for the removal of Sylvia Nashipae Kenga, as Chief Executive Officer and Secretary of the Narok County Public Service Board.

Dated the 6th January, 2026.

DAVIS SOLIAN DIKIRR,
Speaker, County Assembly of Narok.

GAZETTE NOTICE No. 261

THE COUNTY GOVERNMENTS ACT

(Cap. 265)

COUNTY GOVERNMENT OF MIGORI

MIGORI COUNTY PUBLIC SERVICE BOARD

REPORT UNDER SECTION 59(1) (F) OF THE COUNTY GOVERNMENTS ACT, 2012

INTRODUCTION

Migori County Public Service Board (MCPSB) was established on 25th July, 2013 under section 57 of the County Governments Act, 2012. It is a body corporate with perpetual succession and a seal. It is capable of suing and being sued in its corporate name. The Board is not subject to control or direction by any person or authority in the performance of its functions.

Migori County Public Service Board consists of a chairperson, a Vice Chairperson, four Board members and a secretary appointed by

the Governor with approval of the County Assembly. The current Board assumed office on the 4th July, 2023 to serve for a period of six (6) years.

BOARD MEMBERS

<i>Name</i>	<i>Designation</i>	<i>Sub-County</i>
David Odhiambo Ochola (Eng.)	Chairperson	Awendo
Olgha Auma Adede (Dr.)	Vice-Chairperson	Suna West
William Suley Menge (Dr.)	Member	Kuria West
Dorcas Adhiambo Oyugi	Member	Suna East
Enos Azariah Gowa	Member	Rongo
George Onyango Jobando	Member	Urir
CS Andrew Okach Ochola	Secretary/CEO	Rongo

VISION OF MCPSB

A Customer-Focused and Motivated County Public Service.

MISSION OF MCPSB

A responsive public service workforce that prides in effective, quality and dedicated service.

CORE VALUES

- (a) Professionalism
- (b) Integrity
- (c) Customer focus
- (d) Inclusivity
- (e) Teamwork

EXECUTION OF THE FUNCTIONS OF THE BOARD

1. Creation and Abolition of Offices in the County Public Service

During the period under review, the Board did not receive any request for creation of offices nor did it see a need to abolish any existing office from the county public service. As such, the Board neither created nor abolished any offices during the said period.

2. Appointments of Persons to Public Offices

The Board is mandated to appoint persons in public offices in line with the provisions of Section 59 (1) (b) of the County Governments Act, 2012. Appointments are done through recruitment and selection

into new positions, redesignations and promotions. In the period under review, the Board placed advertisements to fill vacancies in the public service and is currently at the tail end of appointments for all the cadres advertised (save for Chief Officers, which is complete) as shown in the tables below.

2.1 Summary of number Appointed per Cadre

No.	Cadre	Job Group	No. Required	No. Appointed
DEPARTMENT OF HEALTH SERVICES				
1	Assistant Director Medical Services	CPSB 05	1	1
2	Health Administrative Officer III	CPSB 11	2	2
3	Community Health Assistant III	CPSB 12	15	15
4	Kenya Registered Nurse II	CPSB 11	12	12
5	Registered Clinical Officer	CPSB 09	11	11
6	Ass. Health Records and Information Management Officer III	CPSB 11	2	3
	Health Records and Information Management Officer Ass III	CPSB 12	1	
7	Medical Engineering Technologist III	CPSB 11	3	3
8	Medical Officer	CPSB 07	3	3
9	Senior Nursing Officer	CPSB 08	1	1
10	Senior Medical Laboratory Officer	CPSB 08	1	1
11	Medical Laboratory Technologist III	CPSB 11	4	4
12	Nutrition and dietetics Technologist III	CPSB 11	3	3
13	Assistant Public Health Officers	CPSB 11	6	6
	TOTAL		65	65
DEPARTMENT OF AGRICULTURE, LIVESTOCK, FISHERIES AND BLUE ECONOMY				
1.	Director Agriculture (Re-advertisement)	CPSB 03	1	1
2.	Director Livestock	CPSB 03	1	1
3.	Assistant Fisheries Officer III	CPSB 11	3	3
4.	Agricultural Officer	CPSB 09	7	7
5.	Assistant Agricultural Officer III	CPSB 11	3	3
6.	Animal Health Officer III	CPSB 11	5	5
7.	Livestock Production Officer	CPSB 09	1	1
8.	TOTAL		21	21
Department of Information and Communication Technology, e-Governance and Innovation				
1	Deputy Director ICT	CPSB 04	1	1
2	ICT Officer III	CPSB 11	3	3
	TOTAL		4	4
DEPARTMENT OF EDUCATION, GENDER INCLUSIVITY, YOUTH AND SPORTS DEVELOPMENT				
1	Director Gender Inclusivity & Social Services (Re-advertisement)	CPSB 03	1	1
2	Youth Polytechnic Instructor III (Fashion Design / Textile Technology and Automotive	CPSB 11	2	2

No.	Cadre	Job Group	No. Required	No. Appointed
	engineering)			
	TOTAL		3	3
DEPARTMENT OF PUBLIC SERVICE MANAGEMENT AND DEVOLUTION				
1	Director Human Resource Management and Development (Re-Advertisement)	CPSB 03	1	0
2	Deputy Director Monitoring and Evaluation	CPSB 04	1	1
3	Records Management Officer III	CPSB 11	4	4
4	Human Resource Assistant III	CPSB 11	2	2
5	Administrative Officer	CPSB 09	2	2
6	Principal Public Communication Officer	CPSB 06	1	1
7	Support Staff	CPSB 14	44	44
8	Senior Ward Administrator- South Kamagambo and East Kanyamkago	CPSB 08	2	2
	TOTAL		57	56
DEPARTMENT OF ENVIRONMENT				
1	Hydrologist II	CPSB 09	2	2
	TOTAL		2	2
Department of Lands, Housing and Physical Planning				
1.	Director Lands and Housing (Re-Advertisement)	CPSB 03	1	0
2.	Director Survey and Geoinformatics (Re-Advertisement)	CPSB 03	1	0
3.	Deputy Director Survey and Geoinformatics	CPSB 04	1	0
4.	Director Urban Development (Re-Advertisement)	CPSB 03	1	0
5.	Municipal Principal Superintending Architect (Re-Advertisement)	CPSB 04	4	1
6.	Municipal Principal Superintending Engineer (Civil) (Re-Advertisement)	CPSB 04	4	4
7.	Municipal Principal Valuer (Re-Advertisement)	CPSB 06	4	0
8.	Municipal Principal Physical Planner (Readvertisement)	CPSB 06	4	0
9.	Municipal Social Development Officer I (Re-Advertisement)	CPSB 10	4	4
10.	Municipal Principal Quantity Surveyor (Re-Advertisement)	CPSB 06	1	1
11.	Municipal Environment Officer I (Re-Advertisement)	CPSB 09	4	4
	TOTAL		29	14
DEPARTMENT OF WATER AND ENERGY				
1	Director Water and	CPSB 03	1	1

No.	Cadre	Job Group	No. Required	No. Appointed
	Energy (Re-advertisement)			
2	Asst Electrical Engineer	CPSB 11	2	2
	TOTAL		3	3
DEPARTMENT OF FINANCE AND ECONOMIC PLANNING				
1	Administrative Assistant	CPSB 11	2	2
2	Library Assistant II	CPSB 11	3	3
3	Clerical Officer III	CPSB 12	15	15
4	Supply Chain Management Officer II	CPSB 10	3	3
5	Accountant II	CPSB 10	4	4
6	Supply Chain Management Officer III	CPSB 11	3	3
7	Economist I	CPSB 09	3	3
	TOTAL		33	32
DEPARTMENT OF TRADE, TOURISM AND INDUSTRIALIZATION				
1	Asst Director Liquor and Licensing	CPSB 05	1	1
	TOTAL		1	1

2.2 Promotion of Officers in Migori County Public Service

Promotion of officers is a human resources function that aims to elevate deserving officers to higher positions in the grading structure. These promotions serve to address staffing gaps, boost morale and enhance both retention and service delivery. The board received several requests from the County executive for promotion and redesignations for the financial year 2024/2025. Below is a summary of the number received per department against number approved:

S/No	Name of Department	No. Requested	No. Approved	No. Declined
1	Agriculture	74	74	0
2	Livestock	29	24	5
3	Fisheries	24	24	0
4	Veterinary	27	23	4
5	Public Service Board	16	13	3
6	Health Services	955	914	41
7	Public Works And Roads	42	42	0
8	Public Service Management	311	275	36
9	Ict	13	10	3
10	Trade	52	45	7
11	Environment	34	30	4
12	Special Programs	2	2	0
13	Monitoring And Evaluation	6	4	2
14	Finance	280	188	92
	TOTAL	1865	1668	197

3. EXERCISING OF DISCIPLINARY CONTROL

Disciplinary control is an integral part of the human resource management function in the county public service. It's intended to contribute to performance improvement and productivity, maintenance of high standards of integrity and upholding the dignity of the office to which public servants are appointed. Disciplinary control in the county public service is a function provided under Section 59(1)(b) of the County Governments Act, 2012.

In the period under review, the Board received did not receive any cases for disciplinary action.

4. PREPARATION OF REGULAR REPORTS TO THE COUNTY ASSEMBLY ON THE EXECUTION OF FUNCTIONS OF THE BOARD

This is one of the functions of the Board according to section 591(d) of the County Government Act, 2012. In the period under review, the Board did not submit any report to the County Assembly

5. PROMOTE IN THE COUNTY PUBLIC SERVICE THE VALUES AND PRINCIPLES REFERRED TO UNDER ARTICLES 10 AND 232 OF THE CONSTITUTION OF KENYA, 2010

During the review period, the Board did not conduct any sensitization on the Values and Principles referred to under Article 10 and 232 of the Constitution of Kenya.

6. EVALUATE AND REPORT TO THE COUNTY ASSEMBLY ON THE EXTENT TO WHICH THE VALUES AND PRINCIPLES REFERRED TO IN ARTICLES 10 AND 232 ARE COMPLIED WITH IN THE COUNTY PUBLIC SERVICE

The Board evaluated 20 County departments (2 of which were not responsive) on the status of compliance with the Values and Principles. Overall, the response rate was 90%. The evaluation focused on the extent to which county departments have mainstreamed the values and principles of governance and the values and principles of the public service that were grouped in 10 thematic areas namely: good governance, transparency and accountability; professionalism and ethics in the public service; provisioning for diversity; fair competition and merit in appointments and promotion; efficiency and effectiveness; sustainable development; responsive, prompt, impartial and equitable service; participation in policy making and implementation; upholding of human rights in the public service; and devolution and sharing of power.

7. FACILITATE THE DEVELOPMENT OF COHERENT, INTEGRATED HUMAN RESOURCE PLANNING AND BUDGETING FOR PERSONNEL EMOLUMENTS IN MIGORI COUNTY

In order to perform this function as mandated under Section 59 (1) (g) of the County Governments Act, 2012, the Board has planned to conduct public participation in liaison with relevant departments and County Assembly committees on the following documents/policies—

- Draft Internship, Recruitment, Training and Sexual Harassment policies which are awaiting public participation.
- Review of the Human Resource Policy and Procedures Manual.
- Draft Conflict of Interest Handbook.

8. ADVISE MIGORI COUNTY GOVERNMENT ON HUMAN RESOURCE MANAGEMENT AND DEVELOPMENT

The Board did not issue any advisory on human resource management and personnel emoluments during the period under review.

9. ADVISE MIGORI COUNTY GOVERNMENT ON IMPLEMENTATION AND MONITORING OF THE NATIONAL PERFORMANCE MANAGEMENT SYSTEM IN MIGORI COUNTY

The Board did not issue an advisory on the national performance management system in the county public service.

10. RECOMMENDATIONS TO SRC ON REMUNERATION, PENSIONS AND GRATUITIES FOR MIGORI COUNTY EMPLOYEES

The Board wrote to the Salaries and Remuneration Commission requesting for advise as well as forwarding the job description of the position of Director/Secretary, Migori County Revenue Board.

CHALLENGES FACED BY THE BOARD IN THE COURSE OF EXECUTING ITS MANDATE

- Budgetary Constraints:** The Board could not implement a number of activities due to budgetary constraints. Further, the mandate and functions of the Board require a significant increase in budget support way above the current allocations.
- Encroachment of the Board's Mandate:** Notwithstanding the mandate of the Board as enshrined in Section 59 of the County Governments Acts, 2012, some Departments are encroaching on the mandate of the Board. Consequently, budgets are allocated to other Departments resulting in the

Board's inability to perform some of its mandates and functions, such as training.

- (c) Physical Resource Challenges: Insufficient tools of service like computers, ICT equipment, Wi-Fi and utility vehicles have hindered the Board's effectiveness in delivering on its mandates.
- (d) Legal Challenges: The Board continues to face a number of legal hurdles in the process of execution of its duties, through institution of suits against it.
- (e) Splitting of departments: There were difficulties during the data collection stage after the Board committees discovered instances where some departments had two chief officers with no clear delineation of roles and responsibilities especially on matters pertaining to human resource management. An example of such are the departments of Public Health and Medical Services.
- (f) Some Departments provided inconsistent data.
- (g) Budgetary constraints which made it impossible for the Board to assert the accuracy of the information provided through conducting in-depth site visits. The Board thus relied on the information provided by departments.
- (h) Some departments failed to submit the tools on time, resulting in a setback in the data compilation and analysis process.
- (i) Lack of centralized human resource and financial data within departments, sub-counties, and municipal boards hampered the data analysis process.
- (j) Communication Challenges: Communication with the target population was also affected by bureaucracy at the central registry leading to delays in dissemination of correspondences. The Board had to call and send scanned correspondences in some cases to circumvent the challenge.

EVALUATION ON IMPLEMENTATION OF THE VALUES AND PRINCIPLES OF GOVERNANCE

- (a) Good Governance, Transparency and Accountability: Although all the participating departments reported the availability of reviewed organograms, the County Government is yet to establish a consolidated, approved organogram as it is awaiting approval from the County Assembly. On succession management, data from the participating Departments on the age distribution of public servants indicate that the age profile in the workforce would still leave room for effective succession management plans across most segments of the county public service. Data on self-reporting by Departments indicated that all Departments across the categories studied had adopted e-procurement. The data could not be verified independently thus the Board will rely on oversight bodies in the future to obtain secondary data. On matters of accountability, at the beginning of the 2024/2025 FY, none of the County Executive Committee Members and County Chief Officers signed performance contracts with the Governor as required.
- (b) Professionalism and Ethics in the Public Service: This principle and value was assessed on the basis of four indicators namely – availability of key policy documents on ethics at the disposal of the accounting officers, availability of training budgets, number of staff trained, membership to professional bodies and declaration of income, assets and liabilities. All these indicators recorded average level of compliance.
- (c) Provisioning for Diversity: This principle was assessed by indicators that exclusively focused on the reported number of employees in the departments that participated in the survey. The number of employees who are of Luo ethnic background stands at 70.6% which represents a majority. This can be attributed to the fact that the Luo is the dominant tribe in the county and that most of the staff were inherited at the inception of devolution. Notwithstanding, the county has included minority communities such as the Maasai, Kenyan Asian, Kenyan Arab, and Orma in the service. On gender representation, 56% staff in the county public service are men with 44% being women. The percentage of disabled

staff in the county is still much lower than the constitutional threshold.

- (d) Fair Competition and Merit in Appointments and Promotions: Levels of compliance with fair competition and merit in appointments and promotions in the public service are evaluated on the basis of three indicators - fair competition and merit, advertisement of job vacancies and representation in appointments. All these indicators were evaluated from the Board's database and reported as being fully compliant.
- (e) Efficient, Effective and Economic Use of Resources: The efficient, effective and economic use of resources by staff in public service is one of the best strategies of enhancing national development. All departmental budgets were in line with the county integrated development plan for 2023-2027. Regarding the indicator of budget absorption, departments performed well on the recurrent side but poorly on the development side. Another indicator in this area was allocative budget efficiency and utilization. A majority of the departments fell short of meeting the recommended ratios for both recurrent-to-development expenditure and personnel emoluments-to-operations-and-maintenance.
- (f) Sustainable Development: The theme of sustainability was evaluated by assessment of the pending bills as a percentage of the total allocated budget for all the evaluated departments. Findings indicate that only two (2) departments namely; ICT (5%) and Governance & Administration (8%) came close to the required threshold on zero pending bills. This can be attributed to delays in exchequer releases from the National Treasury leading to delays in the procurement process.
- (g) Responsive, Prompt, Impartial and Equitable Service: Under this, the evaluation findings on the responsive, prompt, impartial, and equitable service are presented. The variables around which data was collected included the uptake of ICT in service delivery, documentation of service charters, grievance handling procedures and mechanisms for receiving feedback. These were treated as the indicators of responsiveness, promptness, impartiality and equity in provision of public service. The findings indicate that there was a 45% rate in automation of services, a decline from the previous year's report. However, this data is inconsistent and cannot be accurately relied upon.
- (h) Public Participation in Policy Formulation and Implementation: From the findings, 98% of the departments acknowledged the presence of a Public Participation Policy document. This policy, developed by the Department of Public Service Management and Devolution, serves as the framework for organizing public participation forums within the county public service. This is an improvement from last year's evaluation that reported 55%. Accordingly, findings indicate that 35% of the departments, led by the Department of Lands & Physical Planning, and Governance, conducted public participation fora. However, thirteen out of the twenty departments did not conduct public participation forum.
- (i) Upholding Human Rights: The Constitution's Bill of Rights asserts that all Kenyans have equal entitlements to human rights. Consequently, compliance of the public service to this requirement was evaluated. Indicators included the development and implementation of grievance handling procedures, as well as instances of human rights violations within the public service. It was observed, however, that only the Departments of Gender and Inclusivity, and County Attorney reported six (6) and one (1) case respectively.
- (j) Devolution and Sharing of Power: This evaluation aimed to gauge the extent of devolution and power-sharing by assessing three indicators: the participation of departments in joint committees with entities outside the county government (low), the percentage of officers deployed to sub-counties and wards (high, indicating compliance with devolution requirements) and the number of community projects completed during the review period (low percentage). The Department of Environment reported to have completed 85 projects in the period under review which is the leading

number, followed by the Department of Medical Services which completed 22 projects in the same period.

PROPOSED INTERVENTIONS IN THE IMPLEMENTATION OF
NATIONAL VALUES AND PRINCIPLES OF GOVERNANCE
AND PUBLIC SERVICE

In order to ensure that the values and principles evaluated in this report are implemented effectively, the Board commits to undertake the following—

- (a) Create avenues for the general public to engage the board and give feedback on the implementation of the values and principles.
- (b) Develop a reward and sanctions policy geared towards rewarding officers who promote the values and sanctioning those that contravene the same.
- (c) Liaise with stakeholders like the County Assembly to seek meaningful partnerships towards the entrenchment of the values in the public service.

- (d) Organize quarterly sensitization meetings with Chief Officers and other senior county staff on implementation of values in the public service.
- (e) Organize training for board members and staff by the public service commission in order to build the capacity of the board to perform their role with regard to the implementation of values and principles.
- (f) Prepare an annual work plan outlining all activities to be carried out towards the implementation of the values and budgeting for the same.
- (g) Prepare and implement a county employment equity plan for purposes of eliminating ethnic imbalance
- (h) Publish and distribute handbooks on values and principles to all staff to increase awareness.

ANDREW O. OCHOLA,
Secretary/CEO
Migori County Public Service Board.